

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MIGUEL GUZMAN,
Plaintiff

-against-

THE CITY OF NEW YORK, POLICE OFFICER DAMON
FORD, SHIELD #10308, TAX REG. #936608 AND HIS
POLICE OFFICER PARTNER ON ARREST #B07652397
AND CASE #41759C-2007 ON JULY 5, 2007

Defendants
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Index No. **20367/2008**
Purchased _____
Plaintiff designates
Bronx County as the place of trial

The basis of the venue is where the
tort arose and
where Plaintiff resides
SUMMONS

Plaintiff resides at
Bronx, New York

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete is this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 15, 2007


PAPA, DEPAOLA AND BROUNSTEIN
Attorneys for Plaintiffs
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

Defendants' Addresses:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER DAMON FORD, SHIELD
#10308, TAX REG. #936608
41st Precinct
1035 Longwood Avenue
Bronx, New York 10459

P.O. DAMON FORD'S POLICE
OFFICER PARTNER ON ARREST
#B07652397 AND CASE #41759C-2007,
41st Precinct
1035 Longwood Avenue
Bronx, New York 10459

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VERIFIED COMPLAINT

MIGUEL GUZMAN, by his attorneys, PAPA, DEPAOLA AND BROUNSTEIN,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff MIGUEL GUZMAN was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 12th day of December, 2007 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the

claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

5. Upon information and belief, at all times mentioned, Defendants **POLICE OFFICER DAMON FORD, SHIELD #10308, TAX REG. #936608 AND HIS POLICE OFFICER PARTNER ON ARREST #B07652397 AND CASE #41759C-2007** were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

6. On or about July 5, 2007 at approximately 4:00 p.m. in the vicinity of Lafayette and Bryant Avenues, County of Bronx, City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **MIGUEL GUZMAN**. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

7. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "6" with full force and effect as though set forth at length herein.

8. On or about July 5, 2007 at approximately 4:00 p.m. in the vicinity of Lafayette and Bryant Avenues, County of the Bronx, City and State of New York, the Defendants, jointly and severally did place Plaintiff **MIGUEL GUZMAN** in imminent fear of physical

contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

9. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "8" with full force and effect as though set forth at length herein.

10. On or about July 5, 2007 at approximately 4:00 p.m. in the vicinity of Lafayette and Bryant Avenues, County of Bronx, City and State of New York, the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No. 2007BX041759 and Case # 41759C-2007. The Plaintiff was thereafter held in custody over the course of few hours before he was released with the above Summons number. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

11. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "10" with full force and effect as though set forth at length herein.

12. Upon information and belief, on or about July 5, 2007 and from that time until

the dismissal of charges on or about October 18, 2007 by the Honorable Justice Seewald presiding at, Bronx Supreme Court, Defendants **POLICE OFFICER DAMON FORD, SHIELD #10308, TAX REG. #936608 AND HIS POLICE OFFICER PARTNER ON ARREST #B07652397 AND CASE #41759C-2007** deliberately and maliciously prosecuted Plaintiff **MIGUEL GUZMAN**, an innocent man without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

13. The Defendants, **POLICE OFFICER DAMON FORD, SHIELD #10308, TAX REG. #936608 AND HIS POLICE OFFICER PARTNER ON ARREST #B07652397 AND CASE #41759C-2007** their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

14. The commencement of these criminal proceedings under Docket No. 2007BX041759 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

15. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearance to defend his liberty against these unjust charges.

AS AND FOR A FIFTH CAUSE OF ACTION

16. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "15" as it set forth at length herein.

17. Defendants **POLICE OFFICER DAMON FORD, SHIELD #10308, TAX REG. #936608 AND HIS POLICE OFFICER PARTNER ON ARREST #B07652397 AND CASE #41759C-2007** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

18. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

19. Plaintiff **MIGUEL GUZMAN** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

20. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

21. On or about July 5, 2007 the Defendants, armed police, while effectuating the seizure of the Plaintiff **MIGUEL GUZMAN**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so. Further, the Defendants did take property belonging to the Plaintiff in an amount over Three Thousand

(\$3,000.00) Dollars. Further, the Plaintiff was subjected to a strip search with a cavity inspection done by the Defendants without the Defendants possessing a reasonable suspicion that the Plaintiff had secreted contraband on or in his person.

22. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the taking of his personal property in a value to be in excess of Three Thousand (\$3,000.00) Dollars;

23. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the fourth and fourteenth amendments of the United States Constitution.

24. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

25. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "24" with full force and effect as though set forth at length herein.

26. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately

supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

27. The City of New York was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest nor should a person such as the Plaintiff herein be subjected to a warrantless strip search with cavity inspection when the police do not possess a reasonable suspicion that the Plaintiff is secreting contraband in his person.

28. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Force cannot be used against an individual who does not physically resist arrest.
3. An individual cannot be subjected to a warrantless strip search with cavity inspection when the police do not have a reasonable suspicion to believe the Plaintiff herein has secreted contraband on his person.

29. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person.

AS AND FOR A SEVENTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "29" as it set forth at length herein.

31. Defendant City of New York was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A EIGHTH CAUSE OF ACTION

32. Plaintiff hereby incorporates, repeats and re-alleges each allegation of Paragraphs "1" through "31" with the same force and effect as though set forth herein.

33. Due to the actions of all Defendants acting both jointly and severally, the Plaintiff was denied use of approximately Three Thousand (\$3,000.00) Dollars in United States Currency and a gold chain without the consent of the Plaintiff the lawful custodian and owner of said United States Currency and gold chain. Defendants did deny, the Plaintiff's possession, use and enjoyment of the aforementioned property and did convert

Plaintiff's property, to wit, approximately Three Thousand (\$3,000.00) Dollars in United States Currency and a gold chain which they did covert and use for their own purposes and needs, all of the above was done without the consent of the Plaintiff.

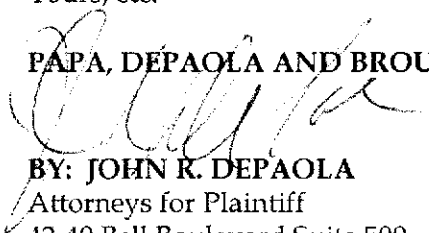
34. This unlawful taking was done without the permission or authority of the Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
April 15, 2008

Yours, etc.

PAPA, DEPAOLA AND BROUNSTEIN


BY: JOHN R. DEPAOLA

Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

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Index No. *20367/2008*
Purchased:

VERIFICATION

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of PAPA, DEPAOLA AND BROUNSTEIN, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 15, 2008



JOHN R. DEPAOLA